

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Clerk Order Releasing Mandate After Rehearing Denial

Entered July 8, 2026.

The court denied Blue Cedar Compliance, Inc.'s timely petition for panel and en banc rehearing on July 1, 2026. Seven calendar days have elapsed since entry of that order. The docket contains no granted stay, no order shortening or enlarging the time, and no other direction withholding issuance. The mandate is therefore released for issuance today under Federal Rule of Appellate Procedure 41.

The clerk shall transmit the June 15 opinion and judgment to the United States District Court for the Eastern District of Virginia with the mandate entered separately on July 8. The disposition remains unchanged: the narrow exclusion of the late Wynn declaration is affirmed, summary judgment on Benton's retaliation claim is vacated, and the matter is remanded for proceedings consistent with the opinion. This release order addresses timing only, adds no merits determination, and shall be served electronically on counsel for both parties.